

is necessary to make the broadcasters answerable to people. It is difficult to see how, replete as the code is with eternal verities familiar to any practising journalist, such as news should not jeopardise any ongoing criminal investigation; no material should be presented in any manner that creates public panic and unnecessary alarm; and good taste should guide the selection and presentation of news. Though the code insists these are self-regulatory, it also sets up a complex three-tier mechanism for redressal of complaints, which culminates at the level of broadcasting consumers' complaints committees set up by industry-level bodies or "any such organisation as may be notified by the Central Government or BRAI".

The most contentious aspect of the code is that related to infringement of privacy—clearly targeting sting operations, the code says any news programme should be broadcast only with the consent of the person or organisation or if otherwise "warranted". It also adds that the means of obtaining material should be "proportionate" to the subject matter and the time-honoured tabloid tradition of door-stepping should be resorted to only when there is "good reason to believe that an investigation will be frustrated if the subject is approached openly". Says senior lawyer Harish Salve: "The Government is looking for shortcuts. They don't want to remedy the legal system and tighten privacy laws so they will put a regulator in place. It's like saying courts should be regulated if some judges pronounce bad judgements." On the shape-shifting changes in the media environment, though, the Bill and the code are silent. There is no opening up of FM radio for news, which actually deprives the mass medium of fulfilling its public service obligation. Or of opening terrestrial broadcasting to private players. The minister has gone on record saying he doesn't believe the nation is



"The media in India believes it can do anything under the sky."

PRIYA RANJAN DASMUNSHI, I&B MINISTER

WINDOW DRESSING

Some provisions of the 2006 draft Broadcasting Bill have been altered but the change is minimal in some cases, regressive in others

THEN	NOW
The Broadcasting Regulatory Authority of India (BRAI) was appointed by a panel of eminent group of government and private sector representatives.	Appointed by a committee comprising vice-president, Lok Sabha Speaker and Leader of the Opposition, similar to the Prasara Bharati selection panel.
There were various public service broadcasting obligations such as 10% of the total programme content should be public service/social messaging.	Post alterations, the draft bill also envisages a Public Service Broadcasting Council which will ensure compliance and manage the penalty fund.
There were stringent cross-media restrictions based on ownership and control and not, as is the practice, increasingly the world over, on the share of voice.	The restrictions remain, with the added caveat that the broadcaster has to submit a compliance plan to the Government within two months and fall in line within a year.
Five Doordarshan channels had to be mandated on the prime band.	Three Doordarshan channels have to be mandated on the prime band.
DM, SDM and police commissioners could revoke licences for broadcasting without permission or for violating Central Government directions.	The same power is vested in authorised officers now who have been specifically notified for each broadcasting service.



"The Government wants a shortcut. It can't remedy the legal system."

HARISH SALVE, SENIOR LAWYER

mature enough for either of these two shibboleths to be shattered—this at a time when non-conventional, technologically-enabled media has the ability to disseminate all the news that's not fit to print or broadcast, and when no one, least of all the Government, can legislate public taste.

More importantly, most major objections raised to the draft in 2006 remain untouched, including significant ones on the powers of the authorised officers who can revoke licences (instead of empowering the DM, SDM and police commissioners, the Central Government will now notify officers for each broadcasting service),

on stringent cross media restrictions, and on mandatory sharing of sports broadcast rights. It also creates yet another bureaucratic entity, the Public Service Broadcasting Council, which will supervise the public service obligation of all broadcasters and manage the penalty fund. On cross-media restrictions especially, the bill is completely out of sync with the rest of the transforming world which is now measuring share of voice (consumer usage of newspapers, television and radio), rather than mere ownership and control.

In an increasingly aggressive market economy, globally and nationally, news—like its use—is bound to be plural, sometimes uncomfortably so, ranging from sting operations that expose political corruption to occult shows that prey on superstition. But a government gag cannot, and should not, be the answer. Ever. ■